

HOUSE BILL 619

By McCalmon

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 10 and Title 49, Chapter 6, Part 1, relative
to special education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-10-103, is amended by adding
the following as a new subsection:

(d)

(1) An LEA shall notify a parent or guardian of a student at least ten (10) calendar days before the student's IEP meeting to ensure that the parent or guardian has an opportunity to attend, unless the parent or guardian and LEA mutually agree to meet prior to ten (10) calendar days in accordance with rules promulgated by the state board of education.

(2) An LEA shall provide the following to the parent or guardian of the student who is the subject of the IEP meeting at least forty-eight (48) hours prior to the IEP scheduled meeting:

(A) A copy of the student's education records, as defined in the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g), that the parent or guardian requests in writing to the LEA more than forty-eight (48) hours prior to the scheduled IEP meeting; and

(B) If the LEA creates a draft IEP for the student prior to the IEP meeting, then a copy of the student's draft IEP, unless the student's parent or guardian provides written notice to the LEA more than forty-

eight (48) hours prior to the scheduled IEP meeting declining the parent's or guardian's right to receive a copy of the draft IEP.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.